# 1803 Electric Cooperative, Inc.

# Informational Filing Containing
# FINAL
# 2025 Request for Proposals for
# Capacity and Energy Resources

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# 1. General Information

## 1.1. Introduction

1803 Electric Cooperative, Inc. (1803) is a Louisiana electric cooperative incorporated on April 1, 2019, and organized pursuant to La. R.S. 12:401 et seq. 1803 is a member-owned electric cooperative consisting of six member electric cooperatives: Beauregard Electric Cooperative, Inc.; Claiborne Electric Cooperative, Inc.; Northeast Louisiana Power Cooperative, Inc.; South Louisiana Electric Cooperative Association; Washington-St. Tammany Electric Cooperative, Inc., and Pointe Coupee Electric Membership Corp. ("PC Electric") (hereinafter referred to collectively as the Member Cooperatives). PC Electric is a transmission services member of 1803, while the other five cooperatives are full-requirements members who receive all power supply and transmission services from 1803. 1803 and the Member Cooperatives are each regulated by the Louisiana Public Service Commission (LPSC or Commission). 1803's load is located entirely in the Midcontinent Independent System Operator (MISO) footprint, specifically MISO Local Resource Zone 9.

1803 has identified a need for additional resources. Accordingly, 1803 seeks to fully explore available power supply solutions and is conducting this Request for Proposals (RFP) in accordance with LPSC's Market Based Mechanism Order (MBM Order),[1] which supplements the LPSC's 1983 General Order.[2] Any proposal(s) selected pursuant to the 2025 Capacity and Energy RFP (2025 RFP) will require LPSC approval and certification under the 1983 General Order, as described in herein. Upon the completion of the RFP, 1803 may enter into a contract or contracts with the selected bidder or bidders.

1803 desires to provide reliable service at the lowest reasonable cost while managing risk to its Member Cooperatives. This RFP will assist 1803 in meeting those goals as well as support other important planning objectives, including but not limited to:

- Ensuring 1803's long term resource adequacy and energy requirements are met.
- Maintaining reliable load serving capability

[1] LPSC's General Order 10-14-2024 (R-34247), which amends and supersedes all previous versions of the of the Market Based Mechanism General Order.

[2] General Order, issued September 20, 1983, as amended and superseded by General Order (Corrected), issued May 27, 2009, in Docket No. R-30517 ("1983 General Order").

## 1.2. Independent Monitor – Not Required

Under certain circumstances that do not apply to this RFP, the MBM Order requires the appointment of an independent monitor (IM) to oversee, on behalf of the LPSC, a utility's compliance with the inter-affiliate and self-build requirements of the MBM Order (see Section 15 of the MBM Order's Final Rule). Specifically, the MBM Order states that the IM will review and track the utility's conduct of the RFP to ascertain that no undue preference is given to affiliates and their bids, self-build or self-supply projects. The MBM Order further provides, in footnote 5 to the Final Rule, that "(t)he requirement for an Independent Monitor is only applicable if a utility proposes a self-build, permits affiliate bidding or proposes self-supply."

While 1803 seeks proposals for a generation facility acquisition, whether existing or build-transfer, in addition to other types of proposals, 1803 is not proposing a self-build or self-supply, and does not anticipate a bid from an affiliate. Accordingly, the 2025 RFP does not require supervision by an IM pursuant to the MBM Order.

## 1.3. Inter-Affiliate Rules

The LPSC, in its MBM Order, requires objective and arm's-length RFP procedures for procuring significant power supplies. Paragraph 8(j) of the MBM Order's Final Rule, requires that 1803 in the 2025 RFP adopt safeguards to ensure "the utility's merchant affiliate bid receives no preferential treatment, preferential access to information or unfair or improper advantage." In addition, paragraph 8(i) of the MBM Order's Final Rule, requires 1803 "to protect the confidentiality of bids and bidder information and to ensure such information is not improperly used by the utility or its utility affiliates nor provided to the utility's merchant affiliate." Further, the MBM Order requires that the utility's informational filing must describe its "methods and safeguards" to meet the inter-affiliate and self-build/self-supply requirements of the MBM Order, as well as any other applicable codes of conduct governing affiliate bids or inter-affiliate contracting (see paragraph 8 of the MBM Order's Final Rule).

No affiliate bidding is contemplated in this RFP.

### 1.4. RFP Administrator

1803 will utilize an RFP Administrator. The duties of the RFP Administrator for the 2025 RFP, as further described, will be performed by Alliance for Cooperative Energy Services Power Marketing LLC (ACES). ACES' responsibilities as the RFP Administrator will be delegated among four separate teams: the Process Control Team, the Solicitation Team, the Counterparty Evaluation Team, and Portfolio Strategy and Analysis Team. Each team's role is discussed in this document.

Each independent team and its members are bound by an internal non-disclosure agreement that strictly prohibits sharing confidential information outside the 1803 2025 RFP process. Additionally, ACES is prohibited from disclosing confidential information regarding 1803's 2025 RFP to its Members or Customers, other than 1803.

As RFP Administrator, ACES' business model provides an established infrastructure of independent energy management practices that supports the verification of, and compliance with, applicable processes, policies, and procedures. ACES takes its obligations regarding the maintenance of confidential information seriously and will handle all confidential information with the highest professional regard.

### 1.5. RFP Website and Contact Information

All documents related to the 2025 RFP may be accessed on the RFP website: www.acespower.com/1803RFP2025

All communications related to this 2025 RFP should be sent to the designated RFP email address:
1803RFP2025@acespower.com

## 2. 2025 RFP

### 2.1. Overview of the 2025 RFP

Utilizing this 2025 RFP, 1803 desires to procure reliable and economically competitive power supply resources to meet the load-serving obligations of its Member Cooperatives, and the reliability goals of the state of Louisiana.

1803 is requesting proposals for all types of power supply resources; this is an all-source RFP. No technology is excluded from this RFP. Proposals can include capacity and energy resources, capacity only resources, energy only resources, renewables, and storage. Proposals can include power purchase agreements, including tolling agreements (PPA), or transfer of ownership of existing generation facilities. Proposals can include the construction of new resources with power purchase agreements or transfer of ownership. Demand response, behind-the-meter, demand-side management, and other types of proposals are encouraged.

## 2.2. RFP Schedule

The schedule for the 2025 RFP is shown in Figure 1. As circumstances may warrant, 1803, in its sole judgment and discretion, may change this schedule. In that event, the Solicitation Team will inform all potential bidders as far in advance as reasonably possible by posting any change on the RFP website.

Figure 1 | 2025 RFP Schedule

| RFP Schedule (Updates will be posted on the 2025 RFP website): | |
|---|---|
| Notice to LPSC | 5/6/25 |
| File Informational Filing Containing Draft 2025 RFP | 7/3/25 |
| Technical and Bidders Conference | 7/29/25 |
| Deadline for Comments, Q&A Period, and Objections to Draft RFP | 8/18/25 |
| Issue Final Version of 2025 RFP | 9/8/25 |
| Bidder Registration Period Begins | 9/10/25 |
| Bidder Registration Period Ends and Notice of Intent Due by 5:00pm CPT | 9/22/25 |
| Proposal Submission Period Opens | 9/26/25 |
| Proposal Submission Period Closes – 5:00 p.m. CPT | 10/6/25 |
| Proposal Submission Fee Payment Deadline - 5:00 p.m. CPT | 10/6/25 |
| Proposal Screening and Analysis Period Begins | 10/13/25 |
| Notice to Bidders of Preliminary Selection List (Short List)* | 1/12/26* |
| Definitive Agreements Executed followed by LPSC Certification Process* | 4/13/26* |
| Regulatory Approval Process Complete* | 5/7/27* |

* These are target dates, not deadlines, and are subject to change.

## 2.3. Basic Requirements for Proposals

1803 desires to contract for the optimal solutions(s) that meet its future power supply needs based on the proposals received from this RFP. The optimal selection(s) may be comprised of a single proposal or multiple proposals from individual or multiple bidders. The laws of the state of Louisiana are strongly preferred to govern any subsequent contract(s) and agreement(s) (hereafter "contracts") resulting from the 2025 RFP. Any contract that provides the laws of a state other than Louisiana shall govern, will be evaluated taking that provision into account.

All proposals will be reviewed by the Solicitation Team for accuracy and completeness.

### 2.3.1. Basic Terms

- Requirements for all proposals:
    - Start Date of Proposals: as early as June 1, 2026, however, this is not meant to disfavor new construction proposals or any proposals with later start dates.
    - Resource Location: must be located in MISO. 1803 prefers, in order high to low, for the location of the resource to be in MISO Local Resource Zone 9, MISO South (Local Resource Zones 8, 9, and 10), or lastly any other MISO Local Resource Zone.
    - Proposal Size:
        - Minimum size: 5 MW
        - Maximum size: 750 MW
        - Note that 1803 reserves the right to acquire more or less than these stated amounts.
    - Transmission Interconnection in MISO: proposals must clearly state whether the resource(s) have, or will obtain, (1) Network Resource Interconnection (NRIS), or (2) Energy Resource Interconnection Service (ERIS). If proposals offer behind-the-meter or demand-side management solutions, state whether a transmission interconnection is required or not.
    - Generation Interconnection Status in MISO: All resources must clearly state whether a MISO Generator Interconnection Agreement (GIA) has been executed, and if not, the resource must state the status of the MISO Generation

Interconnection queue position. If proposals offer behind-the-meter or demand-side management solutions, state whether a GIA is required or not.

- Power purchase agreements
  - Terms: contract terms should be a minimum of 1 year and a maximum of 30 years.
  - Delivery: can be at the resource busbar or at a stated MISO Hub.
- Transfer of ownership proposals
  - Transfer structure: a clear description of the transfer structure and any conditions precedent that are known.
  - Schedule of the transaction: include a complete timeline of the transfer transaction.
  - Warranties: proposal should discuss what warranties that Bidder is including in the proposal.

### 2.3.2. Proposals and Appendices

Appendix A serves as the main appendix for sharing additional information. Appendix A must be fully completed. If a line is not applicable to the specific resource(s) included in a Bidder's proposal, "NA" shall be entered.

## 2.4. Multiple Proposals

1803 will accept multiple proposals from a bidder. In the event the same bidder provides multiple proposals, the bidder must clearly indicate whether the proposals are mutually exclusive or if any interdependencies exist.

## 2.5. Proposal Submission Fee

Bidders are required to pay a Proposal Submission Fee of **$5,000** for each proposal registered in the RFP. Proposals that are alternatives to each other, including proposals that contain differences in pricing, start dates, and any other difference, will be considered separate proposals and each require the submission fee.

Bidder shall submit the total Proposal Submission Fee due from Bidder for each proposal submitted. Bidder will be required to remit payment of the Proposal Submission Fee(s) in full in accordance with the instructions provided by the RFP Administrator. Payment will be due by the date specified in the applicable RFP Schedule (the "Proposal Submission

Fee Payment Deadline"). Bidder's failure to submit the Proposal Submission Fee for a proposal by the Proposal Submission Fee Payment Deadline will result in the elimination of such proposal from this RFP.

In the event a Proposal Submission Fee is not paid in full by the Proposal Submission Fee Payment Deadline and it is unclear which proposal was not supported by payment of the required Proposal Submission Fee, 1803 and the RFP Administrator will have the discretion to determine which proposal to eliminate or what other action(s) to take.

Proposal Submission Fees will be refunded to Bidders only if 1803 cancels or terminates this RFP prior to completion of the evaluation of all proposals for the Preliminary Selection List.

If Bidder, or any proposal submitted by Bidder, becomes ineligible or is eliminated from this RFP including, without limitation, if no proposals are selected for the Preliminary Selection List after 1803 has completed its evaluation of proposals, Bidder's Proposal Submission Fee(s) will not be returned.

### 2.6. Modification or Cancellation of the 2025 RFP

1803 reserves the right, in its sole judgment and discretion, to modify or cancel the 2025 RFP. In such an event, 1803, via the RFP Administrator, will post a notice on the RFP website, and make a reasonable attempt to directly notify all participants who have filed a timely Notice of Intent of any such modifications or cancellation. 1803 and the RFP Administrator, shall have no liability or responsibility for failing to make such direct notification to participants.

## 3. RFP Process and Evaluation

The 2025 RFP document and all related appendices are posted on the RFP website. 1803 will attempt to follow the 2025 RFP Schedule as defined in this document, however, 1803 reserves the right to modify it as needed or as is beneficial to 1803's RFP process.

### 3.1. Confidential Information and Confidentiality Agreements

The RFP Administrator and 1803 employees, as determined by the 1803 CEO, shall have access to all information associated with the RFP and associated responses. 1803 and the

RFP Administrator will treat all proposals submitted by bidders as confidential. 1803 shall submit or file all proposals as confidential with the LPSC, however, bidders shall submit their proposals with the knowledge and acceptance that any information provided by them is subject to disclosure in order for 1803 to cooperate with LPSC's informational requirements, to seek the LPSC's authorization of any accepted and fully negotiated proposal(s) pursuant to the LPSC's 1983 General Order, and to support any applications for other necessary regulatory and governmental approvals.

In the event the 1803 or the Solicitation Team, in their judgment and discretion, determine that information contained in any question, response, or other communication between it and a bidder, which is not contained in the bidder's proposal, requires confidential treatment, an appropriate Confidentiality Agreement will be submitted to the bidder. Otherwise, 1803 will ensure all bidders have access to the same information from 1803, and that no bidder will have selective or otherwise preferential access to non-public market sensitive information from 1803 through the 2025 RFP.

## 3.2. Draft and Final Documents

1803 posted the draft version of the 2025 RFP and associated documentation to the RFP website at the same time as making an Informational filing with the LPSC on July 3, 2025, encouraging and accepting questions and comments up until the deadline in the RFP Schedule. 1803 has considered all questions and comments received. 1803 is now issuing the final 2025 RFP documents as per the RFP Schedule.

## 3.3. Technical and Bidders Conference

On July 29, 2025, 1803 held a virtual Technical and Bidders Conference, which included LPSC Staff and persons interested in the 2025 RFP. The primary purposes of the Technical and Bidders Conference was to review the 2025 RFP and afford interested persons the opportunity to ask questions and make suggestions. Potential bidders for 1803's 2025 RFP were encouraged, but not required, to attend and actively participate. 1803 has posted the video/audio recording of the Technical and Bidders Conference, which includes the written materials, on the RFP website. Bidders were and are advised that those materials may not duplicate all the information provided during the Technical and Bidders Conference and some of the information may become outdated and/or no longer

accurate. Responses to questions received during the Technical and Bidders Conference have also been posted on the RFP Website.

Though none are anticipated at the time of the issuance of the final 2025 RFP documents, 1803 may, in its sole judgment and discretion, in consultation with LPSC staff, schedule and conduct any additional Technical and Bidders Conference if considered beneficial to the RFP process.

## 3.4. Question and Comment Process

1803 has encouraged questions and comments from potential bidders about the 2025 RFP. From the date that 1803 filed the draft version of the 2025 RFP with the LPSC and posted it on the 2025 RFP website, all communications between potential or actual bidders and 1803 or the RFP Administrator have been and shall be conducted by means of the procedures specified in the 2025 RFP. Questions or requests for clarifying information must be directed through the designated RFP email address. Any unsolicited contact with any 1803 personnel or the RFP Administrator by potential or actual bidders concerning the 2025 RFP is not and will not be permitted and may constitute grounds for disqualification.

The questions and comment period has officially ended as of August 18, 2025. The Solicitation Team has posted all questions submitted by bidders, as well as 1803's responses to such questions, on the RFP website. 1803's objective in posting these questions and responses has been to ensure all bidders have equal access to non-confidential information that may be potentially relevant to their proposals. The actual names of the bidders have not be disclosed in posting the questions submitted.

Bidders may continue to submit questions about the 2025 RFP to the RFP email address any time prior to the deadline for submission of the Notice of Intent to Provide Proposal (Notice of Intent) but are encouraged to do so as far in advance as possible of the bidding deadlines. Doing so will allow the Solicitation Team to have adequate time to respond to the questions and post responses to those questions to the RFP website.

## 3.5. Notice of Intent to Provide Proposal

To participate in the 2025 RFP, bidders must submit a Notice of Intent through the RFP website. Upon receipt of a Notice of Intent, the Solicitation Team will acknowledge receipt. 1803 reserves the right to accept or decline any proposal that did not have a timely submitted Notice of Intent.

## 3.6. Submission of Proposals

Bidders should note that 1803 will only accept electronically submitted notices and proposals. Bidders are required to submit all completed forms by the specified deadlines to the 2025 RFP submission email address. Proposals are accepted only during the open submittal periods listed above and will not be accepted after the proposal submission deadline has passed. By submitting a proposal, Bidder represents that the proposal and its submission are duly authorized by the bidder's authorized representative or governance body.

Proposals submitted in response to the 2025 RFP will not be returned to bidders. At the conclusion of the 2025 RFP, all proposals will be confidentially archived by the Solicitation Team until at least the conclusion of any resulting LPSC certification process related to the 2025 RFP, and the conclusion of any regulatory review and approval process. All proposals will be treated as confidential and will be subject to all governing regulatory requirements.

## 3.7. Receipt of Proposals and Redaction

The RFP Process Control Team will document the receipt of all proposals and will ensure that all proposal electronic files, communications, and any other proposal documents are maintained in a secure location that is accessible only to appropriate RFP personnel and 1803.

- 1803 and ACES will ensure confidentiality and that each team uses only the appropriate and relevant information required to perform its specific portion of the RFP evaluation process.

1803's intent is to provide a reasonable level of anonymity of bidders within the RFP process to maintain a fair, consistent, and equitable evaluation process.

## 3.8. Screening for Requirements

The Solicitation Team will thoroughly review and assess all proposals to ensure that each:

- Is received on time,
- Meets the informational requirements and other conditions specified in the applicable appendix, and
- Meets the applicable Basic Requirements and Basic Terms detailed in this RFP.

The Solicitation Team reserves the right to contact bidders to clarify proposal terms and/or request additional information. Any proposal(s) identified as non-conforming will be segregated for discussions with the bidder and the bidder will be allowed the opportunity to correct any non-conforming aspect of its proposal, subject to the limitations described herein.

Proposals that have been submitted on time, meet the Basic Requirements of this RFP, and meet the Basic Terms of this RFP will be considered conforming.

Proposals may be deemed non-conforming if they do not meet the requirements specified in the applicable appendix or if they do not meet the Basic Requirements and Basic Terms for the appropriate proposal detailed in this RFP. Proposals that are deemed non-conforming for reasons other than timeliness will be given three business days after notification of non-conformity from the Solicitation Team to remedy any non-conformity. Subject to 1803's sole discretion, untimely proposals may be eliminated from consideration in this RFP.

## 3.9. Counterparty Evaluation Team

The Counterparty Evaluation Team consists of the Contract Evaluation Team and the Credit Evaluation Team. The Credit Evaluation Team will evaluate the creditworthiness of bidder(s) (or their parent organizations) through a credit assessment, which, at a minimum and in line with industry standards, may include the following factors:

- Tangible net worth evaluation,
- Historical and projected measures of cash flow and liquidity,
- Historical and projected leverage, and

- Calculation of credit ratios.

Other credit risk issues may also be evaluated, including, but not limited to: earnings volatility, risk management practices, the status of ongoing legal, regulatory, or other governmental processes or proceedings or significant contract negotiations, or other pertinent factors that impact ongoing operations.

As part of this process, the Credit Evaluation Team may request additional financial information from bidders (or their parent organizations) and may consider additional confidentiality agreements with such bidders (or their parent organizations) to protect such information, as appropriate. If bidder does not provide requested additional information, the proposal can be deemed to be insufficient and removed from further evaluation.

The credit evaluation process may also include, but is not limited to, reviewing the unsecured or issuer credit ratings issued by Standard & Poor's, Moody's, and/or Fitch, if applicable, and ratings issued by Dun & Bradstreet. 1803 and the Credit Evaluation Team may require any successful bidder (or its parent organization) to post a form of credit support to ensure the bidder's performance under the proposed transaction. The amount of credit support will be determined by the Credit Evaluation Team's evaluation of the bidder's (or its parent organization's) credit condition and determination of financial obligations of the bidders and the potential costs to replace the proposed transaction.

Credit support must be in a form acceptable to 1803 and the Credit Evaluation Team and may include a parental guarantee from a creditworthy entity, a letter of credit from an investment grade financial institution, cash on deposit in escrow, or other equivalent credit support. In addition to the considerations above, 1803 and the Credit Evaluation Team will consider the credit support customarily and ordinarily required in similar transactions compared to the proposed transaction.

## 3.10. Portfolio Strategy and Analysis Team

The Portfolio Strategy and Analysis Team will perform modeling process(es) to evaluate the conforming proposals. This process will use portfolio modeling software and other analysis tools in 1803's discretion. Forward capacity, power, natural gas prices, and

proposal assumptions are inputs to these models. The model will seek to reduce costs and risks for 1803's portfolio. Other risks will be identified outside the model and considered in overall evaluations.

### 3.11. Preliminary Selection List

Upon initial analysis of proposals, a Preliminary Selection List (Short List) will be developed. Bidders whose proposals are included in this Preliminary Selection List will be notified of their status. Bidders whose proposals did not make the Preliminary Selection List will also be notified of their status. At that time, each bidder will also be advised as to whether due diligence and/or additional discussions or negotiations are warranted.

## 4. Proposal Format and Content

Each proposal shall contain at a minimum the following sections with the content described below. Bidders are encouraged to provide more information in addition to this required information.

### 4.1. Executive Summary

A high-level summary of the proposal consisting of no more than four pages that highlights the key points of the proposal.

### 4.2. Resource Description and Costs

This section shall provide detailed information regarding the Proposal such that 1803 and its agents are able to evaluate the economics and scheduling requirements of such Proposal. All proposals shall include all applicable costs associated with delivery to the stated transmission delivery point.

In addition to providing all required information in Appendix A, all proposals, as applicable to that proposal, shall include, but not be limited to:

- Energy costs;
- Demand charges;
- Any transmission costs;
- Startup costs;

- O&M costs; and
- Any scheduling or operational restrictions.

For unit contingent resources, the information shall include, but not be limited to:

- Name of the generating resource;
- Location;
- Fuel type;
- Fuel forecast;
- Fuel transportation requirements, limits, losses;
- Bidder's relationship to resource;
- Commercial operation date;
- Historical availability and capacity factors;
- Equivalent forced outage rates;
- Scheduling limitations;
- Operating cost;
- General description of the maintenance planning (i.e., whether or not the resource is maintained under a long-term service agreement, etc.);
- Planned outage schedule, if applicable; and
- 4 years of capacity accreditation in MISO by season, if applicable for existing resources

For bids based on renewable resources, in addition to the information listed for unit contingent resources, please provide:

- For existing resources, three years of actual hourly generation profile and a forecast profile for each calendar month of proposed term; and
- Expected monthly generation at P50 and P90 levels.
- Documentation of Compliance with Recent Federal and State Changes in Law - On July 7, 2025 President Trump issued Executive Order ("EO") 14315 regarding implementation of changes to electricity production and investment tax credits included in the One Big Beautiful Bill Act ("OBBBA") signed into law on July 4, 2025. As provided for in EO 14315, the Secretaries of the United States Treasury and Department of Interior have been instructed to take steps to ensure compliance with the applicable provisions of the OBBBA, including but not limited to issuing new or revised guidance regarding eligibility for tax credits. Additionally, on

August 1, 2025 Louisiana Act 279 ("Act 279") providing for renewable energy regulation and permitting in the State of Louisiana went into effect. Bidders submitting a proposal(s) in response to 1803's 2025 RFP must comply with all applicable Federal and State changes in law in effect at the time of proposal submission, including but not limited to the OBBBA, Act 279 and any associated new or revised regulations, guidance, policies or practices promulgated by Federal, State and local agencies. To the extent a bidder's underlying generation project has exposure to either or both of these recent changes in law, 1803 requests bidders provide documentation as part of proposal submission outlining the anticipated impacts to each proposal and whether any term of the proposal(s) is subject to change.

For storage bids, in addition to the information listed for unit contingent resources, please provide:

- Cycle efficiency / losses: and
- Description and pricing of any capacity augmentation or capacity guarantee.

For resources not currently in operation, the proposal shall identify all required permits, project schedule, and the status of all project development activities. The MISO generator interconnection queue status must be clearly communicated.

## 4.3. Firmness of Pricing in Proposal

Proposals should indicate the date for which pricing is provided, and for what period of time that pricing is being held firm. If pricing is not being held firm for a period of time or the firm pricing expires, describe factors that would drive any pricing change along with the assumptions used in the pricing provided.

## 4.4. Bidder's Qualifications

This section shall include, but not be limited to, the following:

- Corporate/business structure, including primary and secondary businesses;
- Description of any past, current, threatened or proposed litigation concerning power supply agreements, the proposed energy supply facility and/or Bidder's ability to supply power under a proposed agreement;

- Separate descriptions, as appropriate, for each member if there is a consortium or partnership of two or more firms and the relationship between the entities for this Proposal;
- Bidder's experience in selling to load serving entities; and
- Bidder's experience in developing, owning, and maintaining resources similar to those included in the Proposal.

### 4.5. Financial Documentation

Each proposal should include the most recently available audited financial statements, including balance sheet, income statements, and statement of cash flows for the Bidder and any Guarantor (if applicable). If available, Bidder and its Guarantor (if applicable) should supply the most recent credit rating agency report from S&P, Moody's, and/or Fitch.

## 5. Regulatory Approvals

The effectiveness of any contracts resulting from this 2025 RFP will be subject to authorization by the LPSC under its 1983 General Order in connection with its MBM Order, and possibly other regulatory approvals. Contracts between 1803 and prospective bidders will be conditioned upon regulatory approvals, that are satisfactory in form and substance to 1803, in its sole judgment and discretion. 1803 reserves the right to reject any proposed contracts if subsequently issued regulatory approvals or authorizations are subject to terms or conditions, including but not limited to ratemaking treatment, that are unacceptable to 1803 in its sole judgment and discretion.

Other than the LPSC and other regulatory authorizations required of 1803, a bidder whose proposal is selected by 1803 will be solely responsible, financially, legally, and otherwise, as applicable, for acquiring and maintaining all necessary creditor and other third-party authorizations and consents necessary or appropriate to facilitate effectuation of the selected proposal, including all authorizations, permits, licenses, consents, and approvals associated with a selected proposal, as well as compliance with any and all governmental rules and regulations for the construction and operation of the assets or project identified in the proposal. A bidder whose proposal is selected will be solely responsible for obtaining and maintaining financing for its project. Further, a bidder whose proposal is

selected shall cooperate with 1803 in its activities to obtain LPSC and other regulatory authorizations.

# 6. Reservation of Rights

A bidder's proposal will be deemed accepted only when a definitive contract has been executed and delivered by 1803 to the chosen bidder, the bidder also has executed that contract and delivered the fully executed contract to 1803, and all required regulatory approvals are obtained. 1803 has no obligation to accept any proposal, regardless of whether the stated price in such proposal is the lowest price offered in the 2025 RFP, and may reject any proposal, in its sole judgment and discretion, for any reason whatsoever without any obligation to disclose the reason or reasons for rejection, except as required in the LPSC's MBM Order.

By participating in the 2025 RFP, each bidder agrees that: 1) except as expressly and specifically provided in any representations and warranties contained in a fully executed contract with 1803, any and all information furnished by or on behalf of 1803 in connection with the 2025 RFP is or will be provided without any 1803 representation or warranty, express or implied, as to the usefulness, accuracy, or completeness of such information; and 2) except as otherwise expressly and specifically provided in a fully executed definitive contract with 1803, neither 1803, the Member Cooperatives, nor any of their personnel or representatives shall have any liability to any bidder or its personnel or representatives relating to or arising from the use of or reliance upon any such information or any errors or omissions therein.

The 2025 RFP does not commit or obligate 1803 to pay any costs incurred by the bidder in the preparation of a proposal in response to the 2025 RFP, or to contract for any products or services proposed by any bidder. 1803 reserves the right to modify or withdraw the 2025 RFP, to negotiate with any qualified bidders to resolve technical or contractual issues, or to reject any or all proposals and to terminate negotiations with any bidder at any time. 1803 reserves the right, at any time and from time to time, without prior notice and without specifying any reason and, within its sole judgment and discretion, to:

- Cancel, modify, or withdraw the 2025 RFP, reject any or all responses, and terminate negotiations at any time during the RFP process;
- Discuss with a bidder and its advisors the terms of any proposal submitted by the bidder and obtain clarification from the bidder and its advisors concerning the proposal;
- Consider all proposals to be the property of 1803, subject to the provisions of the 2025 RFP relating to confidentiality and any confidentiality agreement that may be executed in connection with the 2025 RFP and destroy or archive any information or materials developed by or submitted to 1803 in the 2025 RFP;
- Request from a bidder information that is not explicitly detailed in the 2025 RFP, but which may be useful for evaluation of that bidder's proposal;
- Determine which proposals to favor, pursue, accept, or reject;
- Reject any proposals that are not complete or contain irregularities or waive irregularities in any proposal that is submitted;
- Accept proposals without regard to the lowest evaluated cost;
- Determine which bidders to allow to participate in the 2025 RFP, including disqualifying a bidder due to a change in the qualifications of the bidder or if 1803 determines that the bidder's participation in the 2025 RFP has failed to conform to the requirements of the 2025 RFP;
- Conduct negotiations with any or all bidders or other persons or with no bidders or other persons; or
- Execute one or more definitive contracts with any bidder that submits a proposal, with any other person, or with no one.

If, at any time, 1803 determines that there is a defect in the 2025 RFP process or a deviation from the requirements of the 2025 RFP, or that collusive or fraudulent bidding has occurred or appears to have occurred, 1803, in its sole judgment and discretion, may suspend the 2025 RFP in whole or in part as to any bidder or bidders so involved.

Under all circumstances, each bidder is responsible for all costs and expenses it incurs in connection with the 2025 RFP. Under no circumstances, including 1803's termination of

the 2025 RFP at any time for any reason, whatsoever, will 1803 or any of its representatives be responsible for any costs or expenses of any bidder incurred in connection with the 2025 RFP. Section 2.5 above governs the return of any Proposal Submission Fees to Bidder.